Tentative Rulings and Resolution Review Hearings
June 8, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

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8:30 a.m. Law and Motion
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BARTLETT, ET AL. VS. GENERAL MOTORS LLC
CASE NUMBER: 25CV-0207553

Tentative Ruling on Motion for Attorney Fees and Costs: Plaintiffs Shelby and Edward Bartlett filed this Song-Beverly Consumer Warranty Act case on April 22, 2025, alleging that their 2023 GMC Terrain SLE was defective and that Defendant General Motors, LLC ("GM") failed to conform the vehicle to its written warranty within a reasonable number of repair attempts. The case settled at a group mediation for $70,000.00. The parties agreed GM would pay Plaintiffs fees, costs, and expenses pursuant to Civ. Code § 1794(d).

Plaintiffs now seek attorney fees of $25,875 (comprising a lodestar of $17,250, plus a 0.5 multiplier adding $8,625) and costs totaling $1,836.10, for a total award of $27,711.10. GM opposes the Motion. GM does not dispute that Plaintiffs are entitled to fees and costs. GM argues that: 1) hourly rates are excessive, 2) unreasonable hours should be stricken, 3) estimated fees should be stricken, and 4) no lodestar multiplier is warranted.

<u>Untimely Reply</u>: CCP § 1005(b) provides that all reply papers shall be filed with the court and a copy served on each party at least five court days before the hearing. Plaintiff's Reply was filed with the court only three court days before the hearing and served only four days before the hearing. Leave was not sought and no good cause was provided. The Reply and accompanying Evidentiary Objections are untimely and will not be considered.

<u>Merits</u>: The Song-Beverly Act contains a cost-shifting provision that specifically allows prevailing buyers to recover their costs, including attorney's fees. Civ. C. § 1794(d). The attorney's fee award is limited to the amount the court determines was reasonably incurred by the buyer in commencing and prosecuting the action, based on actual time expended. The prevailing buyer has the burden of proving the fees were both reasonably necessary to conduct the litigation and reasonable in amount. Civil Code § 1794(d); *Robertson v. Fleetwood Travel Trailers of California, Inc.*, (2006) 144 Cal. App. 4th 785. The lodestar method applies to determining attorney's fees under the Song-

Beverly Act. *Id.* at 817. When determining a reasonable attorney's fee award, using the lodestar method, the judge begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the prevailing hourly rate for private attorneys in the community who conduct non-contingent litigation of the same type. *Doppes v Bentley Motors, Inc.* (2009) 174 CA4th 967, 998.

Reasonableness of Hours: The court has discretion to decide which of the hours expended by the attorneys were reasonably spent on litigation. *Hammond v. Agran* (2002) 99 Cal.App.4th 115, 133. The predicate of any attorney fee award is the necessity and usefulness of the conduct for which compensation is sought. *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819, 846. The court's focus in evaluating the fee request should be to provide a fee award reasonably designed to completely compensate attorneys for the services provided. The starting point for this determination is the attorney's time records. Absent clear indication they are erroneous, verified time records are entitled to credence. *Horsford v. Board of Trustees of Calif. State Univ.* (2005) 132 Cal.App.4th 359, 395-397.

GM asks the Court to strike or reduce "several categories of unreasonable time entries as identified in Exhibit A to the Declaration of Marissa Rodriguez." The attached Exhibit A generally highlights numerous time entries without specific explanation or argument as to their alleged unreasonableness. GM's Opposition does specifically argue that entries from September 24, 2025 and September 25, 2025 should be stricken because the time was incurred after the case settled at September 15, 2025 mediation. The Reply does not address this issue. The Court has carefully reviewed the billing entries. It does appear that Attorney Murray billed time for working on discovery and disclosures after the matter had settled, because he was not informed of the status of the case. A September 25, 2025 entry states that counsel discovered that the case had settled at mediation, consulted with a managing attorney to confirm, and then undertook tasks to cancel a PMK deposition he had just worked to set up. The Court finds that it is unreasonable to bill for this time that was improperly incurred due to apparent miscommunication within the Plaintiffs' firm. The Court will therefore reduce the time by 3.4 hours.

GM also objects to the anticipatory fee request of $4,687.50 comprising 7.5 attorney hours at a rate of $625 per hour for review of the Defendant's Opposition and preparation of a Reply (5 hours), and for preparation and attendance at the hearing (2.5 hours). Plaintiff's Reply was not timely filed, so the Court will reduce the hours by 5.

The Declaration of Daghighean provides that 29.4 hours were billed in total. The Court will reduce that by 8.4 hours as detailed above for a total award of 21 hours.

Reasonableness of Rates: A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. However, the court may also consider the attorney's skill and expertise, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. *Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632. A plaintiff seeking to recover hourly rates for out-of-town counsel that are higher than the local rates must show (1) a good faith effort to find local counsel, and (2) demonstrate that hiring local counsel was impracticable. *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243.

Here, Plaintiff's counsel seeks approval of rates ranging from $700 for the senior partner, to $550 for an associate. Counsel provides details on each attorney's education and experience. Counsel also supports their requested rates by referring to two rate surveys as well as other courts where their rates have been approved. However, no evidence has been presented that a good faith effort to find local counsel was made, or to demonstrate that hiring local counsel was impracticable. Further, no evidence has been presented that a comparable, smaller-market court like Shasta has approved the rates sought. For those reasons, the Court exercises its discretion to approve the rate of $400 per hour, which is at the high end of prevailing rates charged by attorneys of similar skill and experience in this community.

<u>Multiplier</u>: The amount of attorney fees awarded pursuant to the lodestar adjustment method may be increased or decreased. Such an adjustment is commonly referred to as a "fee enhancement" or "multiplier." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 (*Ketchum*).) The trial court is neither foreclosed from, nor required to, award a multiplier. … The Supreme Court has "set forth a number of factors the trial court may consider in adjusting the lodestar figure. These include: '(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; [and] (3) the contingent nature of the fee award, both from the point of view of eventual victory on the merits and the point of view of establishing eligibility for an award.'" *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247-248.

Here, the Court declines to adjust the lodestar with a multiplier. This is a straightforward lemon law action which settled at mediation early in the case. No discovery or motion practice were undertaken. While the Court acknowledges the attorneys' skill and experience in this practice area, the case did not present novel and difficult questions or unusual skill in presentation. The nature of the litigation was within counsels' standard practice and did not preclude other employment. Finally, the contingent risk and delay in payment are standard in lemon law actions, and the delay was not unusually long or unexpected.

<u>Costs and Expenses</u>: The Song-Beverly Act provides that the court will award a successful plaintiff a sum equal to the aggregate amount of costs and expenses, which have been determined to have been reasonably incurred. Civ. C. § 1794(d). Plaintiff filed a detailed expense report. GM does not object to any costs. Total costs are $1,836.10. Costs appear reasonably incurred and will be awarded.

The motion for attorney fees and costs is **GRANTED.** Attorney fees of $8,400.00 and costs of $1,836.10 are awarded, for a total of $10,236.10. A proposed order has been lodged and will be modified.

LOZANO VS. CALIFORNIA TOWING & TRANSPORT, ET AL.
CASE NUMBER: 25CV-0208662
Tentative Ruling on Demurrer: Defendant City of Shasta Lake ("City") demurs to the First Amended Complaint filed on February 27, 2026 on the grounds that the Second, Third, Fifth, and Seventh Causes of Action fail to state a claim upon which relief may be granted. The Demurrer is unopposed.

On May 4, 2026, Plaintiff filed a Second Amended Complaint ("SAC"). Plaintiff did not seek or obtain leave of court to file the SAC, as required by Cal. Code of Civ. Pro. section 472. There is no proof of service of the SAC on file. The City of Shasta Lake is not named as a Defendant in the SAC. The Court finds that the City's demurrer is mooted by the filing of the SAC. Also on May 4, 2026, Plaintiff filed a Request for Dismissal as to: Kevin Orepeza, City of Shasta Lake, Shasta Lake Sherrif's Department, and Don D. Davis. The clerk did not enter the dismissal because the form is incomplete. Plaintiff must park either 1.a.(1), or 1.a.(2) indicating whether the dismissal is with or without prejudice.

In light of the SAC not naming the City, and Plaintiff's filing of the Request for Dismissal of the City, it appears clear to the Court that this Demurrer is moot, and the Plaintiff does not intend to proceed against the City in this action. The parties should appear today to confirm the status of the case.

MIDLAND CREDIT MANAGEMENT, INC. VS. WEBB
CASE NUMBER: 26CVG-00137
Tentative Ruling on Motion to Set Aside Default: Defendant Jason Webb moves to set aside default judgment pursuant to CCP 473(b) and 473.5 on the grounds of excusable neglect and lack of actual notice.

Merits. CCP § 473(b) permits the Court to set aside a default or order entered against an aggrieved party due to mistake, surprise, inadvertence or excusable neglect. The burden is on the moving party to show that the neglect was *excusable*: i.e., that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58. "[T]he acts which brought about the default must have been the acts of a reasonably prudent person under the same circumstances." *Id.* The moving party has the burden of proof to establish one of these conditions by a preponderance of the evidence. *Luz v. Lopes* (1960) 55 Cal.2d 54, 62. The moving party must submit affidavits or testimony demonstrating a reasonable cause for the default. *Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1491. CCP § 473(b) is to be liberally construed to further the policy of adjudicating legal controversies on the merits. *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1146.

CCP 473.5 provides for set aside when service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action.

Here, Defendant has submitted sufficient evidence that his failure to file a responsive pleading was due to failure to receive actual notice. Plaintiff received timely notice of this Motion and did not file an opposition. The Court also notes that Plaintiff recently filed an Amended Proof of Personal Service of Summons, which indicates process was served April 28, 2026.

The Motion to Set Aside Default is **GRANTED**. The Default is **VACATED**. A proposed order has been lodged and will be executed. Defendant is granted ten days leave from notice of entry of order to file a responsive pleading. Note that this necessarily gives Plaintiff more than 30 days from the April 28, 2026 date of service, because this motion was pending when the Amended Proof of Service was filed and is set to be heard on June 8, 2026.

ROBINSON, ET AL. VS. THE STATE OF CALIFORNIA, ET AL.
CASE NUMBER: 25CV-0208108

Tentative Ruling on Two Motions to Compel Further Responses and Request for Special Sanctions: Plaintiffs have filed two separate, but substantially similar, motions to compel further responses to Form Interrogatories, Set One, from Defendant Helix Environmental Planning, Inc., and Defendant Whitney Environmental Consulting, Inc. DBA Foothill Associates ("Whitney"). Specifically, Plaintiffs seek further responses to requests 12.1-12.7, 13.1-13.2, 14.1-14.2 and 15.1 by removing all objections and providing any resulting information previously withheld, further responses to Form Interrogatory Request 15.1 regarding Helix and Whitney's affirmative defenses, and monetary sanctions against each Defendant in the amount of $1,050.00.

Merits. A party propounding interrogatories may move for further responses if the responses are evasive/incomplete or contain unmeritorious objections. CCP § 2030.300(a)(1) & (3). A response to interrogatories must be served within 30 days after service of the interrogatories. CCP § 2030.260. Failure to timely respond results in a waiver of objections to the interrogatories. CCP § 2030.290(a).

On December 15, 2025, Plaintiffs served Form Interrogatories, Set One, on each Defendant. No responses were provided within the statutory time required. On January 20, 2026, Defendants advised they would provide responses by February 3, 2026. No responses were provided on that date. On February 25, 2026, Defendants requested additional time to respond and the parties agreed to the date of March 11, 2026. No responses were provided on that date. On March 17, 2026, Plaintiffs' counsel sent a meet and confer letter to Defendants requesting verified responses no later than March 19, 2026, or motions to compel would be filed and sanctions sought. Defendants replied that responses would be provided by March 20, 2026. No responses were provided on that date. On March 23, 2026, Defendants responded to the Form Interrogatories, Set One. Plaintiffs sent a meet and confer letter on April 22, 2026, addressing deficiencies related to the objections and request 15.1, and requested further responses no later than April 28, 2026. Defendants responded stating they would provide further responses by May 5, 2026, but maintained they were permitted the objections. No further responses have been provided. The Declaration of Estee Lewis establishes that sufficient efforts were made to meet and confer.

Plaintiffs have established that objections are waived and the responses to requests 15.1 are evasive or incomplete. The requests were made in good faith and the information sought is relevant. Defendants have not opposed the motion.

Sanctions. The imposition of sanctions is mandatory under CCP § 2030.300(d) unless the party subject to sanctions acted with substantial justification or other circumstances would make the imposition of sanctions unjust. Defendants have failed to show substantial justification for their delay in providing further responses to the discovery request.

Plaintiffs request $1050.00 from each Defendant in attorney fees for bringing this motion. The Court finds the hourly rate requested and time spent reasonable. In addition to preparation of the motion, Plaintiffs request additional attorney fees of $700.00 to draft a reply and attend the hearing. Although Plaintiffs filed replies, Defendant did not file an opposition therefore no replies were necessary. The Court will reduce this request by one hour. Sanctions will be imposed against each Defendant in the amount of $875.00.

Both of Plaintiffs' Motions to Compel Further Responses are **GRANTED**. Defendant Helix Environmental Planning, Inc., and Defendant Whitney Environmental Consulting, Inc. DBA Foothill Associates are each ordered to provide further responses within 15 days of notice of entry of order to requests 12.1-12.7, 13.1-13.2, 14.1-14.2 and 15.1 by removing all objections and providing any information previously withheld based on any objection and further responses to request 15.1 regarding affirmative defenses. Sanctions are imposed against each Defendant in the amount of $875.00. Sanctions are payable within 30 days of notice of entry of order. Two proposed orders have been lodged and will be modified to reflect the Court's ruling.

ROBINSON, ET AL. VS. THE STATE OF CALIFORNIA, ET AL.
CASE NUMBER: 25CV-0208108
Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on May 15, 2026, to all Defendants and their respective counsel for failure to appear on May 11, 2026, as ordered on February 4, 2026. Defendant City of Anderson has filed an adequate response to the OSC. The OSC is **DISCHARGED** as to Defendant City of Anderson only. Defendants Helix Environmental Planning, Inc. and Whitney Environmental Consulting, Inc. DBA Foothill Associates have not filed a response to the OSC. Sanctions will be imposed in the amount of $250 against each Defendant and their counsel. The clerk is instructed to prepare a separate Order of Sanctions for Helix Environmental Planning, Inc. and Whitney Environmental Consulting, Inc. DBA Foothill Associates. The matter is also set for a review hearing regarding trial setting today at 9:00 a.m.

ROCKY TOP RENTALS, LLC VS. VAN NORMAN ERICKSON, ET AL.
CASE NUMBER: 25CVG-02320
Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff Rocky Top Rentals, LLC seeks an order deeming admitted the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Arnold John Erickson by mail on March 11, 2026. The Motion has been properly noticed, and is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c). Plaintiff requests sanctions of $1,685.00 in attorney fees and costs required to bring this Motion. That amount consists of 5 attorney hours at a rate of $325.00 per hour, plus the $60.00 filing fee. The Court finds this amount reasonable and it will be awarded.

Plaintiff's Motion to Deem Request for Admission, Set One Admitted by Defendant Arnold John Erickson is **GRANTED**. Sanctions of $1,685.00 are imposed against Defendant Arnold John Erickson and are payable within 30 days of notice of entry of order. A proposed order has been lodged and will be executed.

SIMS VS. C&M OPPORTUNITIES, LLC, ET AL.
CASE NUMBER: 25CV-0208112
Tentative Ruling on Motion for Summary Judgment: Defendant Good News Rescue Mission ("Good News") moves for summary judgment as to all claims asserted against it in both the Sims action (Case No. 208112) and the consolidated Ceremony action (Case No. 0208573). The motion is brought on the ground that Good News did not own, possess, or control the property where the October 8, 2024 attacks occurred, and therefore owed no duty of care to any Plaintiff as a matter of law. Plaintiff Eugene Evans Sims opposes the motion. The Ceremony Plaintiffs have not filed a separate opposition. The Court confirms that the Sims and Ceremony actions have been consolidated by stipulation of all parties and Order of this Court dated May 5, 2026. The instant ruling applies to Good News' motion as to all claims in both actions.

As a threshold matter, Plaintiff failed to file a Separate Statement of Disputed and Undisputed Material Facts as required by Code of Civil Procedure § 437c(b)(3) and California Rules of Court, rule 3.1350. The Separate Statement requirement is mandatory for both the moving and opposing party, and its purpose is to afford due process to the parties and to permit the Court to focus efficiently on whether material facts are truly in dispute. *North Coast Business Park v. Nielsen Construction Co.* (1993) 17 Cal.App.4th 22, 31. Failure to comply "may constitute sufficient ground, in the court's discretion, for granting the motion." (Code Civ. Proc., § 437c(b)(3).) Because Plaintiff failed to file the required Separate Statement, Good News' Undisputed Material Facts ("UMFs") are deemed undisputed for purposes of this motion. The Court will nonetheless address the evidence and arguments raised in Plaintiff's opposition in the interest of completeness.

<u>Standard for Summary Judgment:</u> “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty … . A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

“The trial court may grant summary judgment if there is no triable issue of material fact and the issues raised by the pleadings may be decided as a matter of law. (Code Civ. Proc., § 437c, subds. (c), (f) A defendant moving for summary judgment satisfies its burden “by showing one or more elements of the cause of action in question cannot be established or there is a complete defense to that cause of action. If the defendant meets this initial burden, the opposing party must then make a *prima facie* showing of the existence of a triable issue of material fact. [Citation.] [¶] ... We strictly construe the moving party's affidavits and liberally construe the opposing party's affidavits. We accept as undisputed facts only those portions of the moving party's evidence that are not contradicted by the opposing party's evidence.” (*City of San Diego v. Superior Court* (2006) 137 Cal.App.4th 21, 25, 40 Cal.Rptr.3d 26.) Thus, “[w]hen deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467, 71 Cal.Rptr.3d 707.) *RND Contractors, Inc. v. Superior Ct.* (2025) 112 Cal. App. 5th 697, 702.

Allegations and Issue of Duty: This case arises out of a stabbing attack which occurred on October 8, 2024. Plaintiffs' Complaints for personal injury and wrongful death generally allege that Eugene Sims and Donna Ceremony were attending a rehabilitation program when they were attacked, and that Defendants' negligence in the ownership or operation of the program and/or the premises caused Plaintiff harm. To establish negligence or premises liability, a plaintiff must prove a legal duty of care, breach, causation, and damages. Duty is a threshold question of law for the court. *Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.

"'The proper test to be applied to the liability of the possessor of land in accordance with [Civil Code section 1714] is whether in the management of [one's] property [one] has acted as a reasonable [person] in view of the probability of injury to others.'" (*Kinsman v. Unocal Corp*. (2005) 37 Cal.4th 659, 672.) This duty is not limited to one who holds title over the land "'"but, rather, [is] owed by the person in possession of the land … because [of the possessor's] supervisory control over the activities conducted upon, and the condition of, the land."'" (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1157–1158 (*Alcaraz*).)" *Moses v. Roger-McKeever* (2023) 91 Cal.App.5th 172, 178-179.

Undisputed Material Facts: The attack took place at 2186 Pine Street. This property was owned, operated, and controlled by Defendant Robert Cronic and C&M Opportunities. (UMF 30.) Plaintiff has submitted no competent evidence that Good News ever owned, possessed, controlled, or managed 2186 Pine Street. Absent any ownership, possession, or control over the premises where the attack occurred, Good News cannot be held liable for harm arising from conditions or activities at that location. A defendant "cannot be held liable for the defective or dangerous condition of property which it did not own, possess, or control." *Isaacs v. Huntington Mem'l Hosp.* (1985) 38 Cal.3d 112, 134.

Plaintiff argues that Good News controlled the "Manor" (2171 Market Street), an adjacent property, by virtue of March 1, 2024 lease agreement, and that this control gives rise to a duty extending to the property where the attack occurred. The Court finds that the agreement never went into effect, and Good News did not own, possess, or control the Manor at the time of the attack. Good News' undisputed evidence establishes that the agreement was a preliminary, non-binding, application-stage letter of intent drafted to satisfy a requirement of the Federal Home Loan Bank ("FHLB") in connection with a grant application. (UMF 5, 6.) The Bank provided a conditional award of funding in anticipation of the parties completing all necessary steps, but the funding disbursement never happened. The parties did not create an operating MOU, did not form property management or operation contracts, and did not assign rents. (UMF 8, 9.) Good News never received keys to the Manor, never collected rents, never placed residents, never supervised programming, and never had any operational role at the property. (UMF 6, 7, 11, 12.) Additionally, the Deed of Trust was a security instrument executed at the FHLB's request as part of the ongoing grant application process. It was not a grant deed and did not transfer title, possession, or operational control. (UMF 11.) Because the conditions precedent to the FHLB grant were never satisfied and no funds were disbursed, the instrument had no operative effect. (UMF 11, 12.)

Moreover, there is no evidence that Good News had any involvement with the "Future Story" program operated by Shasta Thrive at 2174 Pine Street or the adjacent 2186 Pine Street property. Good News did not run, supervise, staff, or fund that program. (UMF 15, 16, 17, 18.) Good News played no role in determining which individuals could attend the program or reside at The Manor. (UMF 14, 19.) In sum, Good News has established that it had no duty of care.

Plaintiff's Alternative Request for Relief: In the alternative, Plaintiff requests that the Court deny or continue the motion under Code of Civil Procedure § 437c(h). CCP 437c(h) provides: "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." The declaration in support of the continuance request must describe the discovery that is necessary to resist the motion. *Franzee v. Seeley* (2002) 95 Ca.4th 627, 634-635. A party who seeks continuance under CCP 437c(h) must show why the discovery necessary to oppose the motion for summary judgment or summary adjudication could not have been completed sooner and accordingly requires the court to grant the continuance. *Braganza v. Albertson's LLC* (2021), 67 Cal. App. 5th 144. It is not sufficient merely to indicate that further discovery or investigation is contemplated. *Bahl v. Bank of America* (2001) 89 Ca.4th 389, 396-397.

Here, Plaintiffs' argument and affidavit state only that Plaintiff needs to conduct additional discovery to obtain additional evidence to support its case. Plaintiff does not explain what essential facts may exist, and does not state any reasons those facts cannot be presented. The Court also notes that Plaintiff previously brought its own Motion for Summary Adjudication on this very same issue regarding establishing Good News's duty of care, which was denied. The request to deny or continue the hearing on this motion pursuant to CCP 437c(h) is therefore denied.

The undisputed evidence establishes that Good News Rescue Mission did not own, possess, or control the property where the October 8, 2024 attacks occurred, nor did it own, possess, or control The Manor at the time of the attacks. Good News had no involvement in the "Future Story" program, no role in Witcher's admission or supervision, and no special relationship with the Plaintiffs. Plaintiff has failed to produce competent, admissible evidence raising a triable issue of material fact on the threshold question of duty. Plaintiff's failure to file a required Separate Statement provides an additional independent basis to grant the motion.

Defendant Good News Rescue Mission's Motion for Summary Judgment is **GRANTED** as to all causes of action in both the Sims action (Case No. 25CV-0208112) and the Ceremony action (Case No. 25CV-0208573). Defendant has lodged a proposed order which will be executed.

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9:00 a.m. Review Hearings

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BAUDIZZON VS. RODRIGUES
CASE NUMBER: 24CV-0205393

This matter is on calendar for status review. Plaintiff has filed a Status Statement which indicates the matter has settled as to Defendant Rodrigues. The case remains open to pursue Plaintiff's uninsured motorist claim. Plaintiff requests a continuance to November 2026 in order to pursue that claim. Today's review hearing is continued to **Monday, November 9, 2026, at 9:00 a.m. in Department 64** for status. No appearances are necessary on today's calendar.

JAMES VS. GERLINGER FOUNDRY AND MACHINE WORKS INC.
CASE NUMBER: 25CV-0206862

This matter is on calendar for review regarding status of settlement. At the April 6, 2026 review hearing, the parties informed the Court that this matter had settled. The Court directed the parties to file a notice of settlement as required by CRC 3.1385. No notice of settlement has been filed.

The Court also directed the parties to submit a status statement five days prior to today's hearing. No status statement has been filed. Appearances are necessary on today's calendar to provide a status of the case.

MCCOY, ET AL. VS. MILLER, ET AL.
CASE NUMBER: 25CV-0207500
This matter is on calendar for review regarding status of pleadings and possible trial setting. The Court granted Plaintiff leave to file a Second Amended Complaint. It was filed May 7, 2026. The Order granting leave provided that Defendants had 30 days from service to respond. Tri Counties Bank has filed an Answer to the SAC. The Miller defendants have not, and their time to file has not yet run. Today's review hearing is continued to **Monday, June 29, 2026 at 9:00 a.m. in Department 64** for status of responsive pleadings and possible trial setting. No appearances are necessary on today's calendar.

ROBINSON, ET AL. VS. THE STATE OF CALIFORNIA, ET AL.
CASE NUMBER: 25CV-0208108
This matter is on calendar for trial setting. Plaintiff has filed a status statement which indicates the parties have agreed to a trial date in November 2027. Plaintiff has posted jury fees but Defendant has not. Defendant is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates and to discuss the reasons for a selection of trial date seventeen months from now.

SMITH VS. BRIDGEWAY INN & SUITES, ET AL.
CASE NUMBER: 23CV-0203137
This matter is on calendar for review regarding status of default judgments. All defendants have been defaulted. Plaintiff's counsel informed the Court at the last review hearing that Plaintiff is deceased and Counsel intended to file a motion to substitute Plaintiff's widow as successor in interest. That motion has been filed and is set for hearing in July. Today's review hearing is therefore continued to **Monday, August 10, 2026, at 9:00 a.m. in Department 64** for review regarding status of default judgments. No appearances are necessary on today's calendar.

TD BANK USA, N.A. VS. JEANTET
CASE NUMBER: 24CVG-00749
This matter is on calendar for review regarding status of judgment/dismissal. Notice of Conditional Settlement was filed on December 4, 2025 indicating the matter would be dismissed no later than April 11, 2027. The matter is continued to **Tuesday, June 1, 2027 at 9:00 a.m. in Department 64** for status of dismissal. The Court intends to dismiss the matter without prejudice on June 1, 2027 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the June 1, 2027 hearing. No appearance is necessary on today's calendar.